

Part 1: All Applicants: Ownership and Control Documents

Document Category	Document Name	Business Structure			
		Sole Prop.	LLC	Partnership	Corporation
Citizenship (*VOSB/SDVOSB excluded)	Birth Certificate	1 of the 4 documents is required to show proof of citizenship for all business structures and program applicants (except VOSB/SDVOSB, this program does not require proof of citizenship).			
	U.S. Passport				
	Certificate of Naturalization				
	Consular Report of Birth Abroad (Form FS-240)				
Ownership & Control (*AIT LLCs will require Stocks Certificates & Ledger)	Articles of Incorporation + Amendments				X
	Articles of Organization + Amendments		X		
	Bylaws				X
	IRS SS4 TIN Insurance Letter	X			
	Meeting Minutes		X	X	X
	Most Recent 1040 Schedule C	X			

	Operating Agreement + Amendments		X		
	Partnership Agreement			X	
	Shareholders Agreements + Amendments				X
	Stock Ledger				X
Other Ownership-Related (These uploads conditional upon applicant answers, but apply to all business structures)	Transfer Asset Agreement/Buy-Sell Agreement	X	X	X	X
	Trust Agreement	X	X	X	X
	Franchise Agreement	X	X	X	X
	Letter of Non-Objection	X	X	X	X
	Federal Obligations Payment Plan	X	X	X	X
	Other Active Agreements	X	X	X	X

Citizenship (not required for VOSB/SDVOSB applicants)

Provide any ONE of the following proof of citizenship documents for qualifying owner(s) who make up 51 percent ownership **and only if born outside of the U.S.**

- **State-Issued or Government-Issued Birth Certificate.** Must be from the registry of vital records and statistics and issued by the city, county, or state of birth in a U.S. state or territory. Commemorative Birth Certificates issued from a hospital, doctor, etc. are not accepted as Birth Certificates. Must provide the full name and sex of the qualifying owner. Must provide the date of birth and place of birth. Most certificates will render a seal and signature of the city, county, or state Registrar of Vital Records and Statistics. In some cases, a microfiche copy is submitted and will not have a seal or signature of the Registrar of Vital Records and Statistics. These are acceptable providing the microfiche copy is legible and contains the necessary information; or
- **U.S. Passport or U.S. Passport Card;** or
- **Certificate of Naturalization.** Must provide the full name of the qualifying owner. Must provide the date of issuance. Must contain the label “Form N550” or “Form N-570” in the bottom margin; or
- **Consular Report of Birth Abroad** of a U.S. Citizen (Form FS-240).

Please DO NOT send Social Security cards.

Ownership and Control of Firm

The type of documentation required to be submitted to the SBA to prove the organization is owned, organized, and controlled by a qualifying owner(s) depends on the applicant business’s legal form.

Although the business may not be required to file for incorporation by the Secretary of State in the state of incorporation, it is nonetheless required and necessary to determine the business’s eligibility criteria for participation. If you do not have the required documents, please reach out to a small business support center in the SBA’s network to learn more about these documents.

Documents must be valid at the time of submission and have the required signatures. Note the information contained in these documents regarding owners, percentages, and shareholders should align exactly with the information submitted in the application. In addition, documents should clearly indicate that the qualifying owner(s) maintain full control of all operations as evidenced by bylaws and minutes that describe the election of officers, voting, etc.

Limited Liability Company (LLC)

- **Articles of Organization**, including original and most recent amendment, or **Certificate of Organization** with the Secretary of State seal. Must include date signed and Secretary of State filing stamp or receipt of filing and must be consistent with the management structure listed in the Operating Agreement.
- **Operating Agreement**, including original and most recent amendment. Must have an effective date, identify each member and their respective ownership interest, and must be consistent with the management structure listed in the Articles of Organization.
- **Meeting Minutes (optional)** demonstrating or establishing the current operating practices. When signed and dated, these legally serve as evidence of important actions such as election or appointments of officers, adoption/implementation of bylaws and voting agreements, business decisions, and voting. Must list the date of the meeting and the meeting attendees.

Sole Proprietorship

DBA (Doing Business As) Certificate filed with the most relevant jurisdiction, if firm has one.

Otherwise, one of the following:

IRS SS4 TIN issuance letter with correct name and EIN

Most recent 1040 Schedule C

Corporation

- **Articles of Incorporation**, or equivalent, including original and most recent amendments (if applicable), or **Certificate of Incorporation** with the Secretary of State seal. Must include date signed and Secretary of State filing stamp or receipt of filing.
- **Bylaws**, including original and most recent amendment (if applicable), signed and dated as of their effective date. Must have an effective date or be properly adopted via signed and dated Meeting Minutes. Not required for HUBZone.
- Copy of the **most recent Stock Ledger** adopted in the Meeting Minutes or by resolution clearly showing all owners and ownership percentages as of date of submission, including the name of the corporation, shareholder name(s), number of shares issued, date shares were issued, and share transfer information (date of transfer, certificate(s) transferred, transferer/transferee). The ownership in the documents should match the ownership information submitted in the application.

- **Shareholders Agreements**, including all amendments (if they exist). Must be signed and dated by all owners.
- **Meeting Minutes** demonstrating or establishing the current operating practices. When signed and dated, these legally serve as evidence of important actions such as election or appointments of officers, adoption/implementation of bylaws and voting agreements, business decisions, and voting. Must list the date of the meeting and the meeting attendees. Not required for HUBZone.

Partnership

- **Partnership Agreement**, original and most recent amendment. Must clearly show the ownership percentages of all general, managing, and limited partners.
- **DBA (Doing Business As) or Fictitious Name Certificate**, if applicable. Must be filed with the state.
- **If Limited Partnership or Limited Liability Partnership**, Meeting Minutes demonstrating or establishing the current operating practices. When signed and dated, these legally serve as evidence of important actions such as election or appointments of officers, adoption/implementation of bylaws and voting agreements, business decisions, and voting. Must list the date of the meeting and the meeting attendees.

Other Ownership-Related Documents (if applicable)

- **Recent Ownership Transfer/Buy-Sell Agreement**. Provide evidence of payment and valuation methodology if the company ownership has changed in the last two years. Must be signed and dated.
- **Trust Agreement**. If trust ownership is part of the qualifying 51 percent or more ownership, provide a Trust Agreement demonstrating the trust is revocable, and the qualifying owner(s) are the grantors, trustees, and the current beneficiaries of the trust. Other types of trust are not eligible for the program. Must list the trustees, grantors, and current beneficiaries.
- **Franchise Agreement**. Must list the name of the franchisee and franchisor, as well as the start and end dates.
- **Federal employee as owner or immediate member of owner's household**. If the owner or an immediate member of the owner's household is a federal employee in a GS-13 (or equivalent) position or above, provide a **Letter of Non-Objection** from the federal employee's ethics official.
- **Federal Delinquencies** payment plan, if applicable.
- **Agreements**. Provide joint venture, mentor-protégé, indemnity, consulting, teaming, or any other agreement to verify control of the company (not required for HUBZone).
- **Highest Compensated Individual Explanation**. If the highest compensated individual is not the qualifying owner, please provide a written explanation of the situation detailing who receives the highest compensation and the business reasons for such compensation (not required for HUBZone).

To find program-specific documents, click below:

- [VOSB and SDVOSB Documents](#)
- [WOSB and EDWOSB Documents](#)
- [8\(a\) Documents](#)
- [HUBZone Documents](#)

Effective October 2024